THERMACORE CRITICAL INFRASTRUCTURE SERVICES AGREEMENT

Contract ID: contract_thermacore_2026
Customer: NovaCompute
Vendor: ThermaCore
Effective Date: January 1, 2026

Section 1. Scope
ThermaCore will provide operation and maintenance support for Critical Cooling Loop B serving NovaCompute GPU infrastructure.

Section 4. Incident Communications
Critical incidents must be acknowledged within the service levels stated in Section 7.

Section 7. Service Levels and Commercial Remedies

Section 7.4 - Critical Cooling Incident
Service: critical_cooling_loop_b
ThermaCore shall acknowledge a Critical Cooling Incident within 15 minutes and restore the affected cooling service within 120 minutes.

For each eligible hour of Critical Cooling Incident impact, NovaCompute is entitled to liquidated damages of USD 10,000 per eligible hour, capped at USD 50,000 per incident. Claims must be submitted within 30 calendar days after the incident ends.

Excluded time: planned maintenance expressly scheduled before the incident, customer-caused events, and force majeure. Exclusions apply only to the overlapping period supported by records.

Section 7.5 - Evidence
A claim may rely on BMS telemetry, incident tickets, vendor acknowledgements, maintenance calendars, work orders, and other contemporaneous operational records.

Section 11. Claims Procedure

Claims must identify the applicable service level, incident window, evidence relied upon, calculation of the requested remedy, and any exclusions considered.

ThermaCore may dispute a claim by identifying contrary evidence. NovaCompute may respond with additional evidence. Accepted credits will appear on the next vendor invoice.